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SOCIETY

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SAFEGUARDING EV INNOVATIONS THROUGH IPR

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Chapter 1: Introduction to IPR

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What This Presentation Unfolds...?

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IGNORANCE OF THE LAW

IS NO
EXCUSE

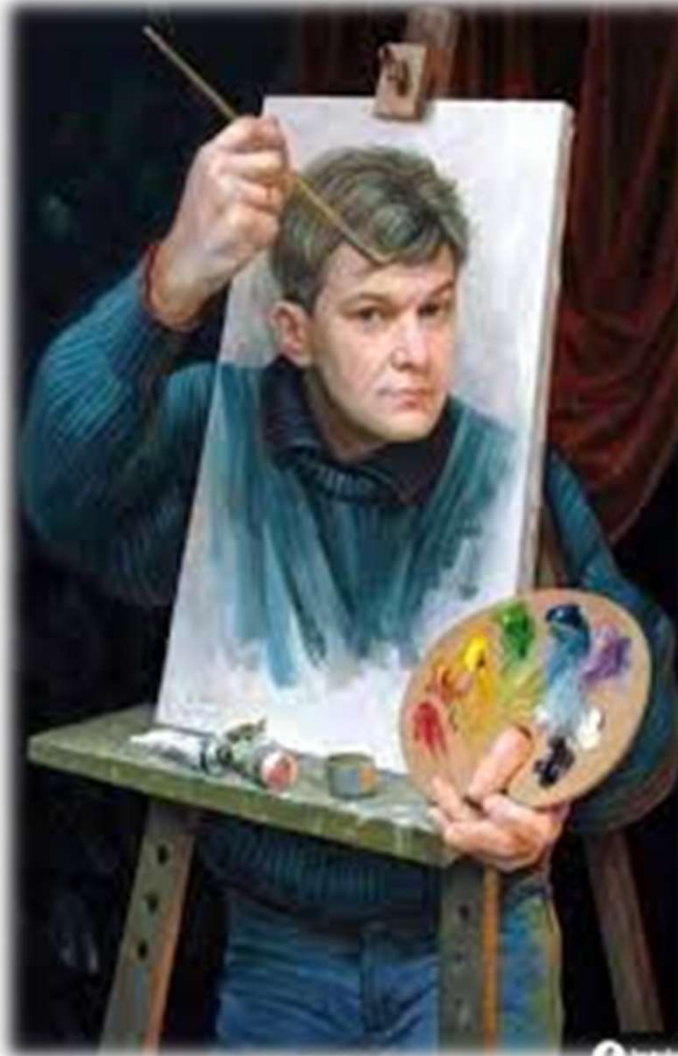


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What is Intellectual Property.....?



☐ Creations of the mind such as inventions; literary and artistic works; designs; and symbols, names and images used in commerce



- ☐ Copyright
- ☐ Trademarks
- ☐ Patents
- ☐ Industrial design rights
- ☐ Trade secrets
- ☐ Geographical indication

Intellectual Property Rights Law

Initial days



Present day



1. Indian Child Welfare Act
2. Consumer **protection** act
3. Labour **Laws in India**
4. The Child Marriage Restraint Act, 1929
5. The Maternity Benefit Act, 1961
6. Right to Information is an Act
- 7. Intellectual property rights law**
8. Laws related to welfare of women
 - The Sexual Harassment of Women at Workplace (PREVENTION, PROHIBITION and REDRESSAL) Act, 2013
 - The Commission of Sati (Prevention) Act, 1987 (3 of 1988)
 - Protection of Women from Domestic Violence Act, 2005
 - The Dowry Prohibition Act, 1961 (28 of 1961) (Amended in 1986)
 - The Indecent Representation of Women (Prohibition) Act, 1986

Intellectual Property Rights Law

The story of **Ekalavya** in the Indian epic **Mahabharata** is often cited as an interesting philosophical example when discussing the **origin and ethics of Intellectual Property Rights (IPR)**.



This episode can be interpreted through the lens of modern IPR concepts:

1. Ownership of Knowledge
2. Unauthorized Use of Knowledge
3. Recognition and Compensation
4. Ethical Debate

Intellectual Property Rights Law

Greek Recipe Monopoly



Ancient Greece in the 7th century BC granted **monopoly to cooks to exploit new recipes for one year**. But a few centuries later, **Emperor Zeno in Rome rejected the concept of monopoly**. Through a proclamation in 480 AD, Emperor Zeno ordered that no one should exercise monopoly **upon any garment or fish or any kind of thing**.



Unlike the myth that craftsmen's hands were cut off to protect uniqueness, modern society protects creativity through **Intellectual Property Rights**, not through punishment but through **legal recognition and exclusive rights**.

Centuries ago, **creativity produced wonders** like the Taj Mahal. Today, **Intellectual Property Rights ensure that creativity is protected, rewarded, and encouraged**.

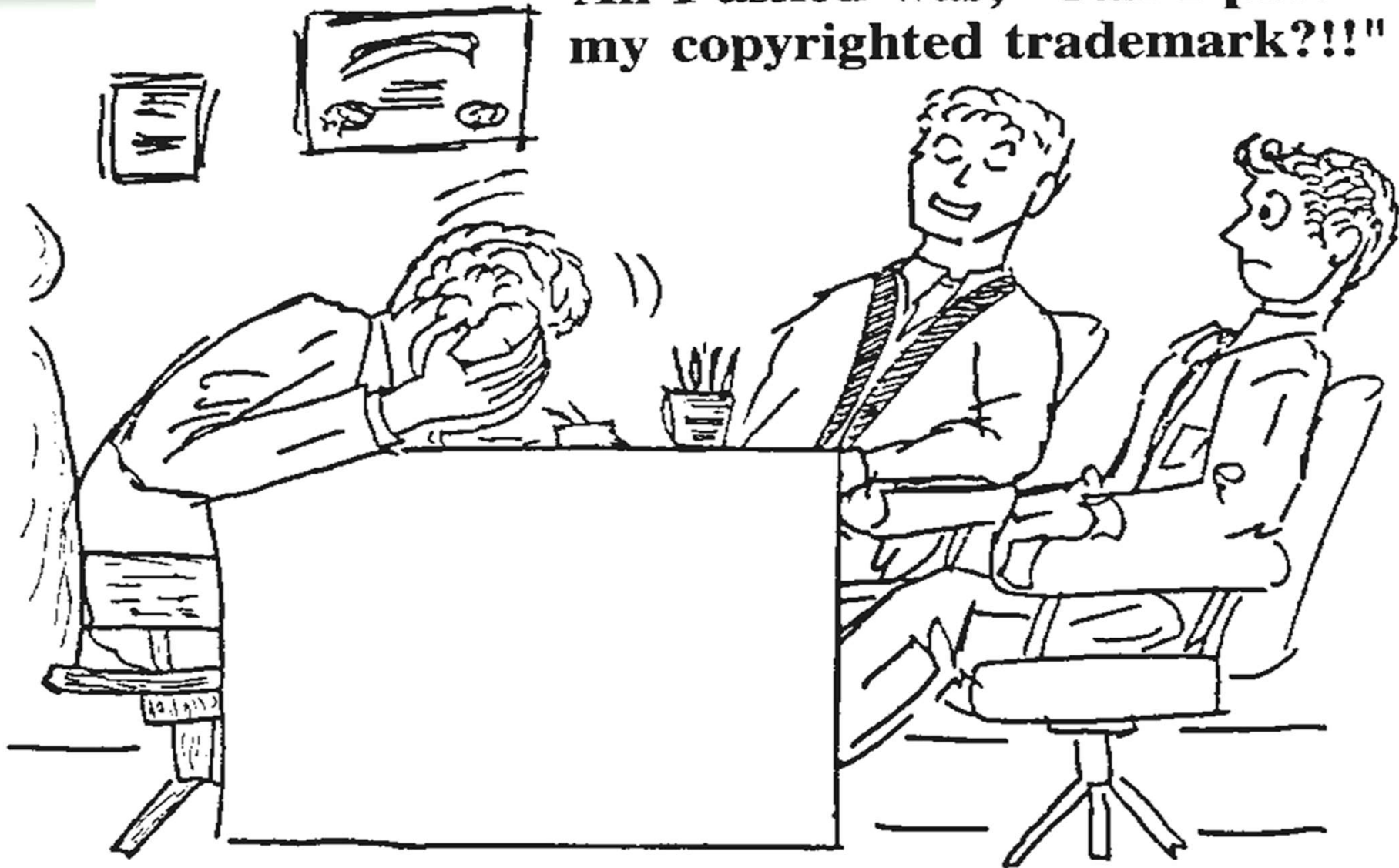
Intellectual Property Rights

DO TRADEMARKS, COPYRIGHTS, DESIGN RIGHTS AND PATENTS PROTECT THE SAME THINGS.....?

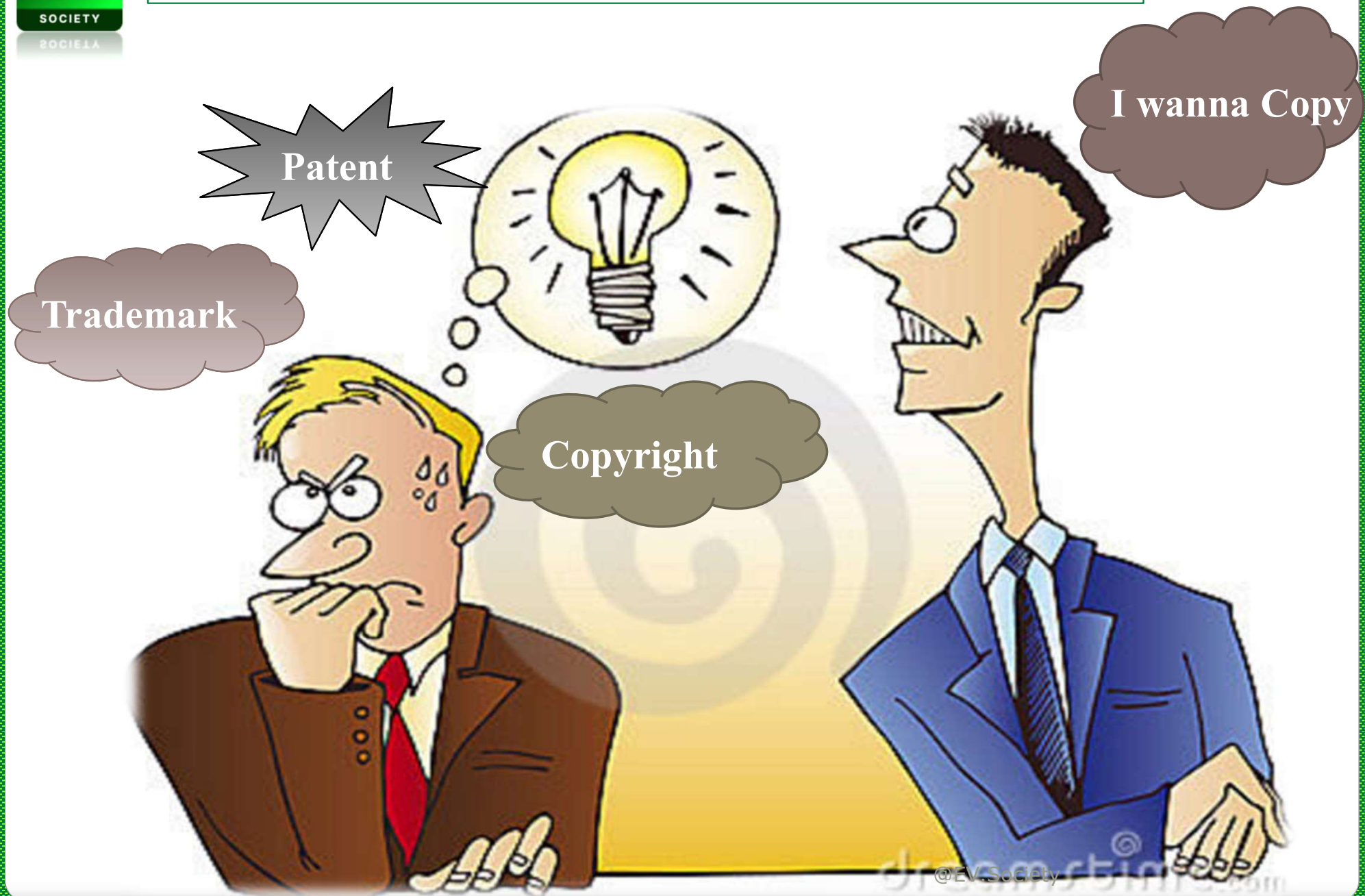


Intellectual Property Rights

"All I asked was, 'Can I patent my copyrighted trademark?!'"



I Have an idea and how do I protect it & get benefit out of it.....?



Why Protect Intellectual Property?



When copying required manual effort, creativity enjoyed natural protection. But the arrival of the photocopier & other means transformed reproduction into a matter of seconds, turning duplication into a serious threat to intellectual property.



What does Intellectual Property Rights protect....?



- ❑ Patent protects an **INVENTION** in the country in which that patent is granted.
- ❑ Copyright protects **EXPRESSION**. Expression can include literary, dramatic, and musical works; pantomimes and choreography; pictorial, graphic and sculptural works; audio-visual works; sound recordings; and architectural works.
- ❑ Trademark protects an **IDENTITY MARK** for product of business.



- ❑ A geographical indication (GI) protects the **name or sign** used on certain products which corresponds to a **SPECIFIC GEOGRAPHICAL LOCATION** or origin (e.g. a town, region, or country)



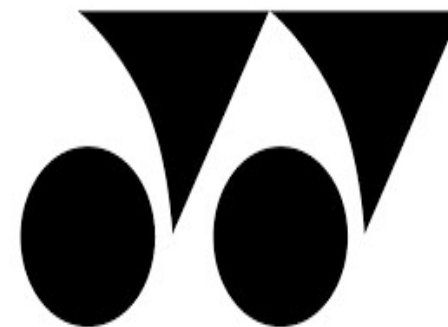
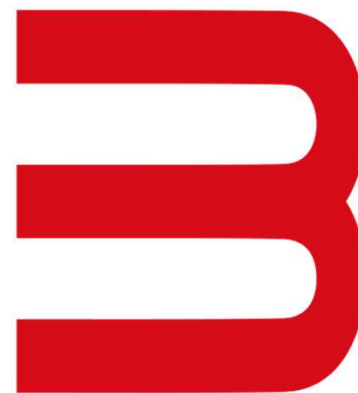
- ❑ An industrial design right is an intellectual property right that protects the **VISUAL DESIGN** of objects

- ❑ Trade secret protects a **TECHNICAL OR SCIENTIFIC INFORMATION, FORMULA, PRACTICE, PROCESS OR OTHER BUSINESS INFORMATION** which is not generally known or reasonably ascertainable, by which a business can obtain an economic advantage over competitors or customers.

Intellectual Property Rights

IPR Type	Protection Duration	Renewal Requirement
Patent	20 years from the date of filing	No renewal after 20 years, but annual maintenance fees must be paid every year from the 3rd year onwards
Copyright	Lifetime of the author + 60 years (in India)	No renewal required
Design Right (Industrial Design)	10 years from the date of registration	Can be renewed for additional 5 years (Total: 15 years)
Trademark	10 years from the date of registration	Renewable every 10 years indefinitely

Intellectual Property Rights



Tesla, Inc.
(American multinational automotive
and clean energy company)



Tesla Power India Pvt Ltd
Indian energy storage solutions
provider



The conflict began when Tesla Power India started advertising its entry into the electric vehicle's domain. This move was contested by Tesla Inc., owned by Elon Musk, who raised objections to these advertisements.

The Delhi High Court has **restrained Tesla Power India** (and related entities) from using the trademarks "**TESLA POWER**" and "**TESLA POWER USA**" for batteries, inverters, and EVs, granting an interim injunction to Elon Musk's **Tesla Inc. (USA)**. The court found the Indian entity's usage deceptive, causing consumer confusion by mimicking the US brand



Film Camera



Digital Camera



Professional Photography



Amateur Photography





Razor & Blade Syndrome

LOW MARGIN



HIGH MARGIN



**Ready
Shaver**



**Digital
Camera**



KODAK was
the Inventor of
Digital Camera



1975 -Steven Sasson
(KODAK Engineer)
Inventor of the First Digital Camera

Intellectual Property Rights



16.0 MEGAPIXELS
3.0 IN LCD



Intellectual Property Rights

Industrial design protection for 3D Shape, Ear phones

Music played is a Copyright



Sony is a Trademark

Various technical parts & mechanism's are patentable subject matter

Intellectual Property Rights

Functioning of
mobile phone -
Patent

Software in
embedded chips-
Copyright



HTC, NOKIA,
SAMSUNG-
Trademark

Design/Shapes of
Mobile phone can get
- Design Rights

Intellectual Property Rights

BASMATI RICE PATENT BATTLE



Council of Scientific & Industrial Research (CSIR)
Traditional Knowledge Digital Library



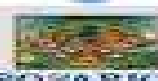
AYURVEDA



UNANI



SIDDHA



SOWARIGPA

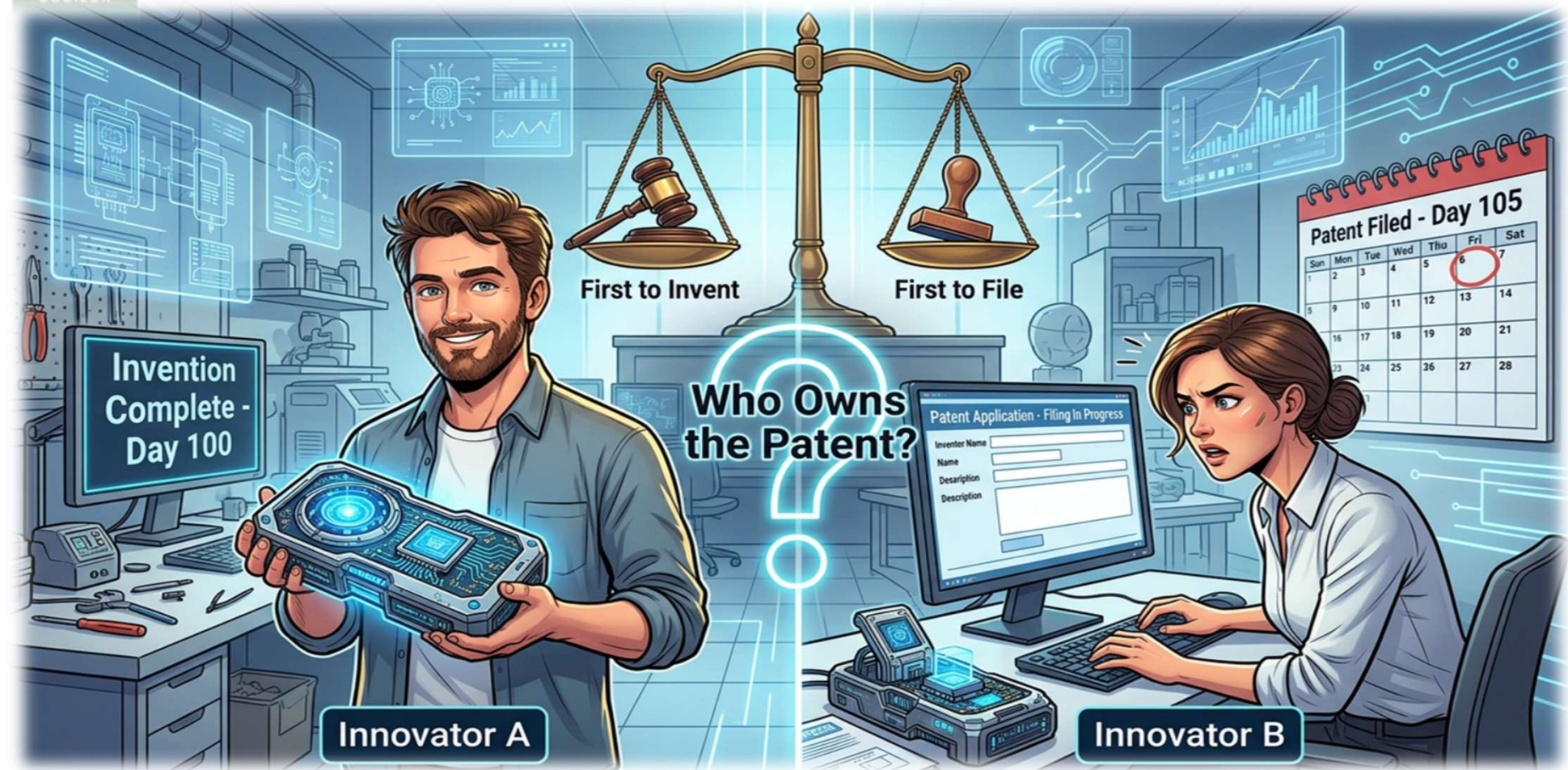
TKDL SEARCH

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Trademark colors Battled-for in some jurisdictions



Intellectual Property Rights



"**First to use**" is a legal principle where trademark rights are granted to the party that first uses a mark in commerce, rather than the first to file a registration.

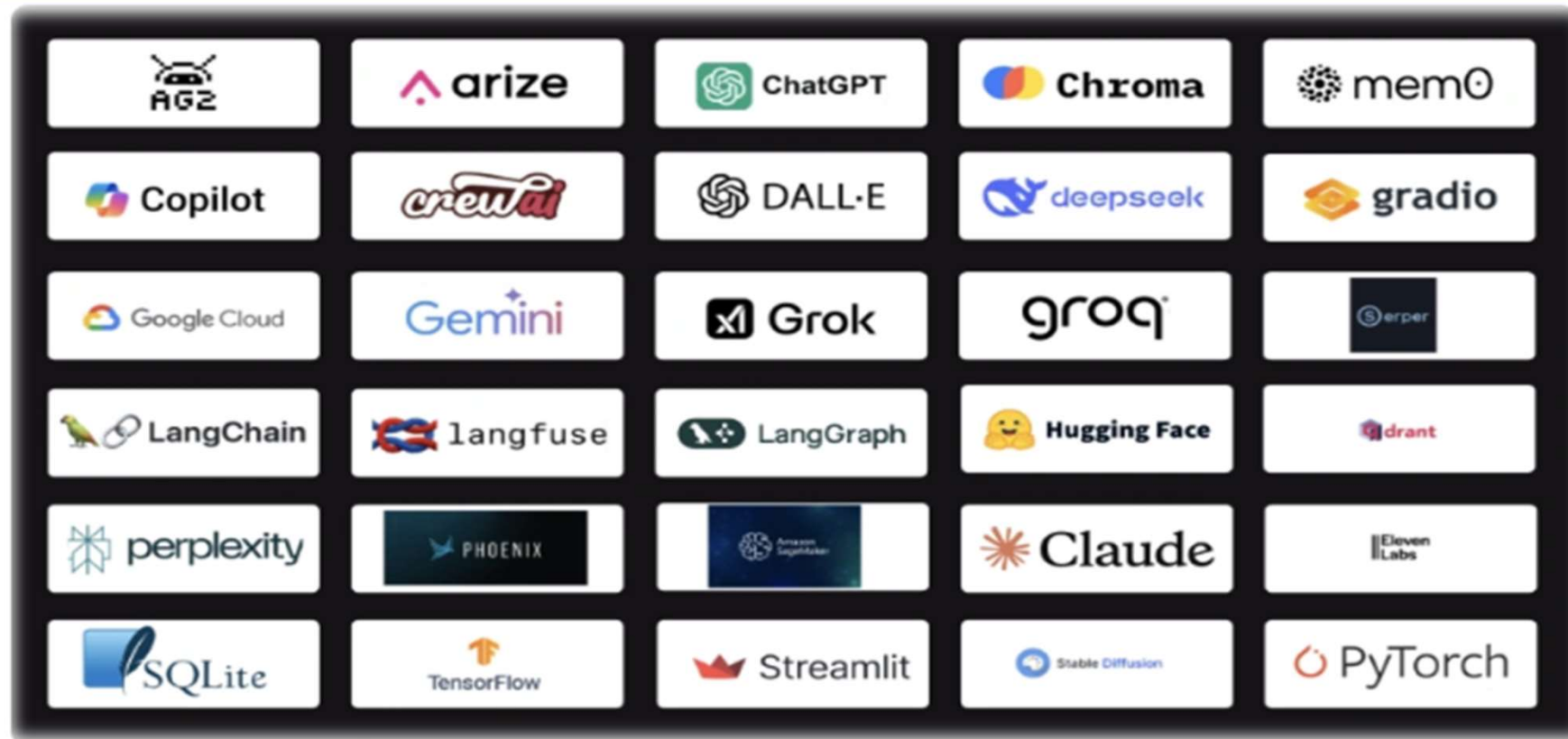
"**First-to-File**" is a legal principle where the first person to file a patent application receives the patent, regardless of who invented it first.

Intellectual Property Rights



- **2011 - Monkey Selfie Case**
- Naruto, a macaque, took the photos using a camera left on a tripod by photographer David Slater.
- PETA sued on behalf of the monkey, arguing Naruto should own the copyright.
- A US federal court ruled in 2016 that animals cannot own copyrights.
- While PETA argued that the monkey was the "author," the legal consensus in the US and similar jurisdictions is that **only humans can hold copyright**, and works created solely by animals belong in the public domain.

Ownership of works generated by AI is a **complex, evolving legal issue** that varies significantly by jurisdiction, platform terms, and the level of human creative input.



In many jurisdictions, including the US, for an AI-generated work to be copyrighted, a human must have provided **"substantial" creative input or modified the output**, such as through significant editing, arranging, or prompting.

Intellectual Property Rights Doctrines

Two doctrines are commonly used to judge whether a copyright work can be considered original:

1. The Sweat of the Brow Doctrine and
2. The Modicum of Creativity Doctrine.

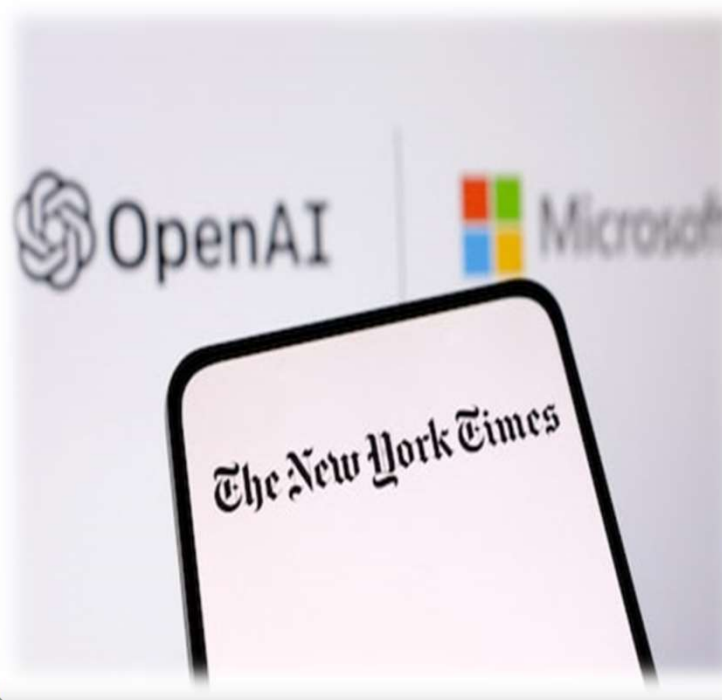
The Sweat of the Brow Doctrine considers a material to be original if the author had used skill and labour in its creation and it originated from him.

Later, courts resorted to using the Modicum of Creativity Doctrine instead, ruling that for a work to be considered original, it had to have a minimum amount of 'creative originality.'

Although AI-generated outputs do not meet the requirements of the first doctrine, it is debatable as to whether such material can really be considered to be 'creative' under the second doctrine as AI does not have truly novel ideas, creating an output based on already existing material from the internet and at many times, even replicating them.

Moreover, AI-generated outputs face a huge backlash from many creators **due to their violation of IPR of human creators**, using copyrighted material in the training and output creation of AI without permission from the original authors.

- **US Approach:** The US Copyright Office has stated that **copyright applies only to human-authored aspects**. If a user **heavily edits, curates, or rearranges AI-generated content (e.g., in a comic book)**, they may own the copyright to the final, combined work, but not the raw AI output itself.
- **China Approach:** Courts have shown more openness to assigning copyright to users who make creative contributions, such as by inputting detailed prompts and setting parameters.



60 ONE HUNDRED EXAMPLES OF GPT-4 MEMORIZING CONTENT FROM THE NEW YORK TIMES

EXAMPLE 48: POPE IN BREAK FROM DOCTRINE BACKS SAMESEX CIVIL UNIONS

<https://www.nytimes.com/2020/10/21/world/europe/pope-francis-same-sex-civil-unions.html>
Copyright number: TX 8-926-133 Effective Date: 2020-12-14

Prompt (taken from article):
ROME — Pope Francis expressed support for same-sex civil unions in remarks revealed in a

Output from GPT-4: documentary film that premiered on Wednesday, a significant break from his predecessors that staked out new ground for the church in its recognition of gay people. The remarks, coming from the leader of the Roman Catholic Church, had the potential to shift debates about the legal status of same-sex couples in nations around the globe and unsettle bishops worried that the unions threaten what the church considers traditional marriage — between one man and one woman. “What we have to create is a civil union law. That way they are legally covered,” Francis said in the documentary, “Francesco,” which premiered at the Rome Film Festival, reiterating his view that gay people are children of God. “I stood up for	Actual text from NYTimes: documentary film that premiered on Wednesday, a significant break from his predecessors that staked out new ground for the church in its recognition of gay people. The remarks, coming from the leader of the Roman Catholic Church, had the potential to shift debates about the legal status of same-sex couples in nations around the globe and unsettle bishops worried that the unions threaten what the church considers traditional marriage — between one man and one woman. “What we have to create is a civil union law. That way they are legally covered,” Francis said in the documentary, “Francesco,” which debuted at the Rome Film Festival, reiterating his view that gay people are children of God. “I stood up for
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U.S. Copyright Office answered that question in its ruling in Zarya of the Dawn.



They refused copyright registration for AI-generated images. Detailed text prompts were not enough human authorship because it said the output is unpredictable and not controlled by the artist.

UNPREDICTABLE



OUTPUT



- ❑ The United States Copyright Office granted **limited copyright protection to the graphic novel “Zarya of the Dawn”** marking the latest development in the burgeoning field of AI-assisted creative works.
- ❑ “Zarya of the Dawn” represents one important step in the **development of copyright standards applicable to a broad range of generative AI platforms.**

Mx. Kashtanova used MidJourney in the production of the comic book’s images

The central question of the government’s inquiry was whether Mx. Kashtanova’s interactions with MidJourney were sufficient to constitute an independent, creative work by Mx. Kashtanova



- ❑ **The conflict:** A Bengaluru-based startup, Flaxxi AI, claims **it used the name ChatGPT as early** as 2022. The name was linked to an educational platform built with IIT Jammu.
- ❑ **The argument:** Flaxxi says it has been **using the name first**. In India, that matters more than who's more famous globally.
- ❑ **The claim:** Prior use equals stronger rights under Indian trademark law.
- ❑ **The result:** OpenAI's **trademark for ChatGPT has been opposed**. The case is still pending. Until then, ChatGPT has no official trademark protection in India.



- ❑ **The conflict:** Google's **AI model Gemini** ran into trouble with **Gemini TV**, a trademark owned by Sun TV, a leading Indian broadcaster.
- ❑ **The issue:** Even though one is an AI platform and the other is a TV channel, the names sound too similar. That's enough to **confuse consumers** - and that's enough to trigger a trademark objection.
- ❑ **Cited legal grounds:**
 - **Section 11(1)** – The mark is too similar to an existing trademark and may cause confusion.
 - **Section 9(1)(b)** – The mark is not distinctive enough and may mislead the public.
- ❑ **Status:** Google's application is under scrutiny. **The similarity in name and brand identity could delay or block trademark approval.**



**Thank
You**